



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 15 judgments on Tuesday 5 March 2019 and 79 judgments and / or decisions on Thursday 7 March 2019.

*Press releases and texts of the judgments and decisions will be available at **10 a.m.** (local time) on the Court's Internet site (www.echr.coe.int)*

Tuesday 5 March 2019

Šaranović v. Montenegro (application no. 31775/16)

The applicant, Slobodan Šaranović, now deceased, was a Montenegrin national who was born in 1938 and lived in Budva (Montenegro).

The case concerns Mr Šaranović's pre-trial detention in Montenegro on suspicion of being behind the 2013 murder of the brother of the leader of a Serbian criminal organisation. He had allegedly arranged the murder out of revenge for his own brother's murder in Belgrade in 2009. Mr Šaranović himself was murdered outside his house in 2017 and his wife continued the proceedings before the Court.

Mr Šaranović was arrested in April 2014 in Montenegro and spent the next two and half years in pre-trial detention. The first six months were extended essentially because of the gravity of the offences of which he was suspected. After that, and following the prosecuting authorities issuing an indictment against him in October 2014, his detention was extended "until further decision". The indictment never entered into force throughout this period, but was repeatedly returned by the courts with requests for further investigation.

He was released in December 2016, given the time he had already spent in detention and because it was uncertain when the indictment would come into force, if at all.

All his appeals against the decisions to order and extend his detention were unsuccessful. In particular, in December 2014 he submitted appeals alleging that his detention from 15 November onwards had not been reviewed after the 30-day period required by law. These appeals were dismissed and his detention further extended on 15 December 2014.

He lodged two constitutional appeals. The first was dismissed in 2015 as unfounded and the second is still ongoing.

Relying on Article 5 §§ 1 (c), 3 and 4 (right to liberty and security / entitlement to trial within a reasonable time or to release pending trial / right to have lawfulness of detention decided speedily by a court) of the European Convention on Human Rights, Mr Šaranović made a number of complaints about his pre-trial detention. He alleged that there had been no review of his detention between 15 November and 15 December 2014 and it had therefore been unlawful, that he had been detained for more than two years without the indictment entering into force and that the decisions extending his detention and the Constitutional Court's decisions concerning his complaints about his pre-trial detention had lacked reasoning.

[Bogonosovy v. Russia \(no. 38201/16\)](#)

The applicants, Vera Bogonosova and Georgiy Bogonosov, are Russian nationals who were born in 1955 and 1948 respectively. Ms Bogonosova died on 29 August 2018. Mr Bogonosov lives in St Petersburg (Russia).

The applicants' granddaughter, M., was born in 2006. Her mother, the applicants' daughter, died in 2011, and M. continued to reside with her grandparents. The applicants' relatives, Mr and Ms Z., helped the applicants to look after M. and were eventually allowed to adopt her in 2013.

After facing problems maintaining post-adoption contact with his granddaughter, Mr Bogonosov succeeded in 2015 in restoring the statutory time-limit and appealed against the adoption judgment.

The St Petersburg City Court upheld the adoption in May 2015, stating that the law did not require that relatives such as grandparents be notified of or be involved in an adoption. On the other hand, they had a right under the Family Code to maintain contact with a child and could seek a court order if the adoptive parents prevented such contact.

However, when Mr Bogonosov made such an application, the District Court discontinued the proceedings. It held that the original adoption process had not indicated that he was to continue to have family ties with the child and so he had no right to seek an order against the adoptive parents to allow contact. Ms Bogonosova's appeal was also unsuccessful.

Relying on Article 8 (right to respect for private and family life), the applicants complain of a violation of their right to maintain contact with their granddaughter after her adoption. They also complain under Article 13 (right to an effective remedy) of the lack of a remedy for that violation.

[Skudayeva v. Russia \(no. 24014/07\)](#)

The applicant, Anna Skudayeva, is a Russian national who was born in 1975 and lives in Kostroma (Russia).

The case concerns the applicant being found liable for defaming a regional governor in a newspaper article.

In July 2006 Ms Skudayeva wrote an article for the Kostroma Chronometer (Хронометр-Кострома) local newspaper about corruption. The governor of the Kostroma Region subsequently brought civil defamation proceedings against her and the publisher of the newspaper over some of the statements in the article.

In October 2006 the applicant was found liable for defaming the governor by making false statements of a damaging nature. She was ordered to pay 500 Russian roubles in compensation in respect of non-pecuniary damage, a ruling which was upheld on appeal in December of the same year.

Ms Skudayeva complains that the court judgments in the defamation proceedings unduly restricted her rights under Article 10 (freedom of expression).

[Uzan and Others v. Turkey \(nos. 19620/05, 41487/05, 17613/08, and 19316/08\)](#)

The applicants, Jasmin Paris Uzan, Renç Emre Uzan, Ayla Uzan-Ashaboğlu, Nimet Hülya Talu and Bilge Doğru, are Turkish nationals who were born, respectively, in 2003, 1999, 1971, 1948, and 1952. Ayla Uzan-Ashaboğlu lives in San Francisco (USA) and the other applicants live in Istanbul (Turkey).

The case concerns attachment measures against the applicants' property on the ground that their relatives, or their managers in some cases, were being prosecuted for the misuse of public funds in a case concerning the activities of the bank "Türkiye İmar Bankası", which had been controlled since 1984 by the Uzan group and whose banking licence had been withdrawn after it had registered a loss of several billion euros.

Jasmin Paris and Renç Emre Uzan were the children of one of the defendants in the main criminal proceedings. Ayla Uzan-Ashaboğlu was the daughter of the bank's chief executive officer. Nimet Hülya Talu and Bilge Doğru had served as management auditors.

Relying in particular on Article 1 of Protocol No. 1 (protection of property) to the Convention, the applicants complain about the maintaining of the attachment measures against their property and the authorities' refusal to lift those measures for several years, even though they had not been found guilty or liable in any criminal or civil proceedings. They also allege that the measures were illegal, in breach of their right to be presumed innocent, and that they sustained discriminatory treatment.

[Yavaş and Others v. Turkey \(no. 36366/06\)](#)

The 12 applicants are Turkish nationals who were employed for many years by the Turkish insurance company "Ankara" (Ankara Anonim Türk Sigorta Şirketi).

The case concerns a reduction in the applicants' old-age pension – in some cases by almost 50% – as a result of an "adaptation" by the Social Security Authority following a budgetary deficit.

During their employment the applicants paid contributions, which were twice as high as the ceilings provided for by the relevant Law (no. 506), to the medical insurance and pension fund for officials and employees of the "Ankara" insurance company, a Turkish public limited company, and thus acquired a "top-up pension". In December 2001 the applicants' fund was transferred to the Social Security Authority by a decision of the Council of Ministers. From February 2002 onwards the Authority decided to reduce the applicants' pensions by "adaptation" following a budgetary deficit. Considering, among other things, that this reduction ran counter to the principle of acquired rights, they brought an action before the domestic courts. Their case was dismissed after proceedings lasting for about four years.

Relying on Article 1 of Protocol No. 1 (protection of property) to the Convention, the applicants complain about the reduction in the amount of their pension in relation to their entitlement as established on their retirement.

Under Article 6 § 1 (right to a fair hearing), they also complain about the length of the proceedings, alleging that they have been in a situation of vulnerability as a result of their pension being halved.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Bittoun v. the Republic of Moldova (no. 51051/15)

Colesnic v. the Republic of Moldova (no. 18081/07)

Ichim v. the Republic of Moldova (no. 50886/08)

Negura and Others v. the Republic of Moldova (no. 16602/06)

Gabbazov v. Russia (no. 16831/10)

Sokovnin v. Russia (no. 3627/07)

Tilloev v. Russia (no. 2120/10)

Košťál and Others v. Slovakia (nos. 2294/17 and 48691/17)

Uçar v. Turkey (no. 53319/10)

Yılmaz v. Turkey (no. 1792/12)

Thursday 7 March 2019

[Abdullayev v. Azerbaijan \(no. 6005/08\)](#)

The applicant, Huseyn Abbas oglu Abdullayev, is an Azerbaijani national who was born in 1967 and lived in Baku at the relevant time.

Mr Abdullayev is a former member of parliament. In March 2007, during a debate in the legislature, he became involved in a fight with another deputy, F.A., who complained to the Prosecutor's Office. The applicant was eventually prosecuted and given a two-year prison sentence, suspended for two years. According to the applicant he asked the court to view video tapes of the fight but it refused. It relied on evidence such as F.A.'s testimony and a forensic report on his injuries.

An appeal court upheld his conviction in August 2007, dismissing an application by him to examine the video evidence. A cassation appeal was also unsuccessful.

Before his arrest he suffered from spinal disc herniation which he alleges worsened during his pre-trial detention. The Government states that doctors found him to be healthy enough to be detained and that he had treatment for his health problems while being held by the authorities.

Mr Abdullayev complains under Article 3 (prohibition of inhuman or degrading treatment) that the conditions of his pre-trial detention were not compatible with his health and that he did not receive proper medical care.

Relying on Article 6 §§ 1 and 3 (d) (right to a fair trial and right to obtain attendance and examination of witnesses), he complains that the criminal proceedings were unfair, that there were procedural shortcomings in the way the forensic evidence was obtained, and that the courts failed to examine video evidence and arbitrarily applied domestic law. He also raises other complaints under Articles 3, 5, 6, 9 and 10, and complains about restrictions on his right to leave the country under Article 2 of Protocol No. 4 to the Convention.

[Rustamzade v. Azerbaijan \(no. 38239/16\)](#)

The applicant, Ilkin Bakir oglu Rustamzade, is an Azerbaijani national who was born in 1992 and is currently serving a prison sentence.

The case concerns his arrest and detention in 2013 for allegedly filming some friends performing a sexually suggestive dance and uploading the video of it to YouTube.

In the first few months of 2013 Mr Rustamzade, an economics student and civil society activist, actively participated in a number of demonstrations held in Baku criticising the government for the deaths of soldiers in the army.

Against that background, on 1 March 2013 he allegedly made a video of friends performing what had become a popular dance at the time in Azerbaijan, the "Harlem Shake". The video, later uploaded to YouTube, shows seven people dancing in a park, one of whom makes sexually suggestive movements near a bronze statue. He denied the charges against him.

Mr Rustamzade was arrested and charged in May 2013 with hooliganism. He was accused of "manifest disrespect towards society" and of breaching public order by making the video-recording and uploading it.

At the prosecuting authorities' request, the court ordered his detention pending trial for two months on the grounds that there was a risk of his absconding and reoffending. Despite repeated appeals, the courts extended his detention until his conviction in May 2014 for hooliganism as well as of a number of other crimes subsequently added to the list of charges, including mass disorder and various arms offences. He was sentenced to eight years' imprisonment.

A separate application (no. 22323/16) concerning the criminal proceedings against Mr Rustamzade is still ongoing before the European Court.

Relying on Article 5 §§ 1 and 3 (right to liberty and security / entitlement to trial within a reasonable time or to release pending trial), Mr Rustamzade complains that that he was arrested and detained without a reasonable suspicion that he had committed a crime and that the courts failed to justify his pre-trial detention. He also argues under Article 18 (limitation on the use of restrictions on rights) in conjunction with Article 5 that his rights were restricted for purposes other than those set down in the Convention.

Sallusti v. Italy (no. 22350/13)

The applicant, Alessandro Sallusti, is an Italian national who was born in 1957 and lives in Carate Urio (Como) (Italy).

The case concerns a journalist who was found guilty of defamation, fined and given a prison sentence, part of which he served under house arrest.

In 2007 Mr Sallusti was editor-in-chief of the *Libero* newspaper. In February that year *Libero* published two articles stating that a 13-year-old girl had been forced to have an abortion by her parents and a guardianship judge. Other media had covered the incident the previous day but they had ultimately reported that she had not been forced into the abortion but had wanted it herself.

In April 2007 the guardianship judge filed a criminal complaint of defamation against Mr Sallusti. He was found guilty in January 2009 of failure by a newspaper editor-in-chief to control what had been published (*omesso controllo sul contenuto dell'articolo diffamatorio*) in relation to one of the articles and of aggravated defamation with regard to the other. He was fined, ordered to pay damages and costs and to publish the court's judgment.

On appeal, the penalty was increased in June 2011 to one year and two months' imprisonment and the damages were tripled to 30,000 euros. The Court of Cassation upheld the custodial sentence in September 2012, however, the court executing the sentence let him serve it under house arrest.

In December 2012 Italy's President, referring in his decision to criticism by the European Court of Human Rights of custodial penalties for journalists, commuted the applicant's sentence into a fine. He had by that time spent 21 days under house arrest.

Mr Sallusti argues that his conviction for defamation through the press and for failure to exercise control over the content of a publication breached his rights under Article 10 (freedom of expression).

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

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Žiško and Others v. Bosnia and Herzegovina (nos. 27078/15, 27081/15, 27304/15, 27309/15, 27312/15, 27328/15, 27334/15, 27344/15, 27345/15, 27401/15, 27404/15, 27428/15, 27432/15, 27434/15, 27439/15, 27442/15, 27445/15, and 27447/15)

Iskra-Ilievi i Sie SD v. Bulgaria (no. 26222/11)

Pavlova v. Bulgaria (no. 1226/13)

SP Developments EOOD v. Bulgaria (no. 41601/11)

Niotis v. Greece (no. 40497/12)

Benyó and Others v. Hungary (nos. 76237/13, 14935/15, and 27900/15)

Budaházy v. Hungary (no. 70878/17)

Fábiánfy and Others v. Hungary (nos. 400/15, 27638/15, 12158/16, 45311/16, 67987/16, 75274/16, 8962/17, 29784/17, 69491/17, 73667/17, and 23356/18)
Fehér v. Hungary (no. 65686/14)
Gomboczné Vigyázó and Others v. Hungary (nos. 10133/17, 31565/17, 44858/17, 45593/17, 46547/17, 69494/17, 70462/17, 70881/17, 74642/17, and 78770/17)
Havrilla and Others v. Hungary (nos. 21049/15, 29015/16, 76315/16, 13/17, 17099/17, 60791/17, 69490/17, 69493/17, 77361/17, and 78476/17)
Jándi-Varga and Others v. Hungary (nos. 32373/14, 35438/14, 37525/14, 7747/15, 7787/15, 7798/15, 9905/15, 20390/16, 37377/16, and 54687/16)
Kiss v. Hungary (no. 60670/17)
Kolompár v. Hungary (no. 38321/14)
Körmendy-Majnek v. Hungary (no. 28496/17)
Kováts v. Hungary (no. 48770/15)
Kudlik v. Hungary (no. 73412/17)
Nagy v. Hungary (no. 76768/16)
Polgár and Drafi v. Hungary (no. 80993/13)
Schronk and Others v. Hungary (nos. 29613/16, 40835/16, 50805/16, 51263/16, 54938/17, 64600/17, 76982/17, 5627/18, 19710/18, and 20070/18)
Szekeres and Others v. Hungary (nos. 21763/14, 42819/14, 64339/14, 5818/15, and 30197/15)
Szokol v. Hungary (no. 1701/17)
Varga v. Hungary (no. 54589/15)
Biagini and Others v. Italy (no. 43089/04 and 116 other applications)
Masetti and Others v. Italy (no. 4281/04 and 161 other applications)
Nwaogaraku v. Luxembourg (no. 63725/16)
Cooperativa de Construcție a Locuințelor no. 223 v. the Republic of Moldova (no. 15898/15)
Foresta-Fort S.R.L. v. the Republic of Moldova (no. 36673/11)
Luncașu v. the Republic of Moldova (no. 38202/10)
Șoitu v. the Republic of Moldova (no. 18835/08)
Arad Centru Romanian Greek Catholic Parish United to Rome and Salonta Romanian Greek Catholic Parish United to Rome v. Romania (nos. 1949/15 and 16160/15)
Avram v. Romania (no. 32269/15)
Codoban v. Romania (no. 62830/15)
Constantin v. Romania (no. 41989/16)
Florea and Others v. Romania (nos. 6363/15, 14462/15, 35435/15, 57621/15, 61765/15, 62855/15, 4665/16, 17075/16, and 22648/16)
Huțanu and Băloi v. Romania (nos. 34021/16 and 39593/16)
Iliăș and Others v. Romania (no. 7219/14 and 26 other applications) – Revision
Mușat and Others v. Romania (nos. 27514/06, 32074/06, and 27615/07)
Rîncu v. Romania (no. 44584/15)
Sandor and Others v. Romania (nos. 38150/15, 51974/15, 56474/15, 58199/15, and 45349/16)
Besetskaya v. Russia (no. 11350/05)
Chernenko and Others v. Russia (nos. 4246/14, 33840/14, 12821/15, 52007/16, and 61992/16)
Chertov and Others v. Russia (nos. 28971/10, 20028/13, 9082/14, 10488/14, and 15782/14)
Kargapol'tsev and Others v. Russia (no. 35461/17 and 19 other applications)
Mukhanov v. Russia (no. 74921/10)
Radionov v. Russia (no. 13934/06)
Marković v. Serbia (no. 40121/16)
Jureková and Mlynková v. Slovakia (nos. 27984/18 and 33876/18)
Maslák v. Slovakia (no. 23222/18)
Abiş v. Turkey (no. 51515/11)
Aydın v. Turkey (no. 48266/11)

Çelik v. Turkey (no. 69199/12)
Çiçek v. Turkey (no. 45175/12)
Devir v. Turkey (no. 81584/12)
Elçi v. Turkey (no. 10176/12)
Engin v. Turkey (no. 33379/10)
Graf Kösebalaban v. Turkey (no. 3643/08)
Güler v. Turkey (no. 12027/17)
İlbey v. Turkey (no. 48264/11)
Karakuş v. Turkey (no. 53805/11)
Kaya v. Turkey (no. 58388/10)
Köksal v. Turkey (no. 33812/11)
Kurt and Others v. Turkey (no. 18928/11)
Mendeş v. Turkey (no. 3154/15)
Meşe and Others v. Turkey (nos. 434/10, 874/10, 1866/10, 3763/10, 5278/10, 18664/10, 19995/10, 20040/10, 20045/10, 20060/10, and 22137/10)
Özden v. Turkey (no. 37178/10)
Sağman v. Turkey (no. 13429/11)
Şahingöz v. Turkey (no. 63905/10)
Sarı v. Turkey (no. 40312/11)
Sesiz v. Turkey (no. 3662/10)
Tayfur v. Turkey (no. 40401/15)
Grigoryev v. Ukraine (no. 32569/08)
Korol and Others v. Ukraine (nos. 54503/08, 25725/09, 51967/09, 65987/09, 29273/10, 38721/10, 54570/16, and 157/18)
Sanchyshyn v. Ukraine (no. 81639/17)
Shmatok v. Ukraine (no. 49697/17)
Zyukin v. Ukraine (no. 46858/13)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.